

Form No.HCJD/C-121

ORDER SHEET

LAHORE HIGH COURT

RAWALPINDI BENCH RAWALPINDI

JUDICIAL DEPARTMENT

WRIT PETITION NO.2157 OF 2025

Munir Ahmed, etc. **Vs** District Judge, Attock, etc.

S.No. of order/ proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel, where necessary
	04.07.2025	Malik Khurram Shahzad, Advocate for the petitioners. Malik Amjad Ali, Additional Advocate General, Punjab. Mr. Naeem Siddique, Advocate/Legal Consultant, Punjab Healthcare Commission.

This petition in terms of Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (hereinafter referred to as “**Constitution**”) stems from judgment dated 25th March, 2025, whereby learned District Judge, Attock, while partly allowing the appeal, preferred by the petitioners, modified the order dated 11th December, 2024, passed by the Punjab Healthcare Commission, Lahore, penalizing the petitioners with a fine.

2. Facts germane for adjudication of instant petition are that on 19th November, 2024, the Assistant Director (Enforcement), Punjab Healthcare Commission, being the Authorized Officer visited the premises with the name and style as M/s Touseef Clinic, Mohallah Ghousia Jand, Attock, owned by the petitioners and in furtherance thereof submitted a report to the Punjab Healthcare Commission, Head Office, Lahore stating that during his visit, petitioner No.2 Touseef Ahmad was found involved in illegal and unauthorized practice of allopathy on the above mentioned premises, without having requisite qualifications and registration from the Pakistan Medical and Dental Council, rendering healthcare services in contravention to the provisions of the Punjab Healthcare Commission Act, 2010 (hereinafter referred to as “**Act, 2010**”). On the basis of the report, the

premises were sealed and proceedings under the **Act, 2010** were conducted after issuance of notice to the petitioners. The proceedings ultimately ended with an order dated 11th December, 2024, whereby a fine of Rs.2,00,000/- was imposed upon the petitioners by the Hearing Committee. Feeling aggrieved, the petitioners preferred an appeal under Section 31 of the **Act, 2010** before the learned District Judge, Attock, who while partly allowing the appeal, reduced the fine from Rs.2,00,000/- to Rs.1,00,000/-

3. Learned counsel for the petitioners contended that there is no material that the petitioners have ever violated any provisions of the **Act, 2010**. He added that premises of the petitioners were raided in contravention of the mandatory provision of the **Act, 2010**. Learned counsel emphasized the penalty of fine was imposed upon the petitioners by the Hearing Committee, which is non-existent under the **Act, 2010** itself. Learned counsel submitted that the impugned order passed by the Hearing Committee is *coram non judice* and the appellate court failed to take into consideration this apparent legal flaw, which renders the judgment dated 25th March, 2025 nullity in the eye of law.

4. Conversely, learned Law Officer submitted that the petitioners were proceeded against strictly in accordance with law. He added that the Hearing Committee was constituted under the Punjab Healthcare Commission Regulations for Banning Quackery in all its forms and manifestations and for dealing with Quacks, 2016. It is contended with vehemence that the proceedings culminating into imposition of fine upon the petitioners are duly protected under the law.

5. Heard. Record perused.

6. In order to provide for establishment of the Punjab Healthcare Commission, to make provisions for the improvement of quality of healthcare services, to ban

quackery in all its forms and manifestations and to provide for ancillary matters, **Act, 2010** was promulgated by the Provincial Assembly, on 22nd July, 2010 and assented by the Governor of the Punjab on 30th July, 2010. Under the Scheme of the **Act, 2010**, Punjab Healthcare Commission is having a notable prominence and it is defined in Section 2(vii) of the **Act, 2010** as under:-

(vii) “Commission” means the Punjab Healthcare Commission.

Chapter II of the **Act, 2010** deals with healthcare commission and its governance. In terms of Section 3, which is part of Chapter II, the Government is vested with the powers to establish a Commission to be called as Punjab Healthcare Commission for carrying out the purposes of the Act by issuing a notification. The Commission is a body corporate having perpetual succession and common seal, with powers to enter into contract, sue and be sued by its name. Functions and powers of the Commission are outlined in Section 4 of the Act, 2010, which reads as under:-

4. Functions and powers of the Commission.—(1) The Commission shall perform such functions and exercise such powers as may be required to improve the quality of healthcare services and clinical governance and to ban quackery.

(2) Without prejudice to the generality of the provisions of sub-section (1), the Commission shall—

- (a) maintain register of all healthcare service providers;
- (b) grant, revoke and renew licenses to persons involved in the provision of the healthcare services and to vary terms and conditions and purposes of the licenses;
- (c) monitor and regulate the quality and standards;
- (d) operate accreditation programmes in respect of the healthcare services and to grant accreditation to such healthcare service providers who meet the standards;
- (e) enquire and investigate into maladministration, malpractice and failures in the provision of healthcare services and issue consequential advice and orders;
- (f) impose and collect fees and charges on registration, licensing and accreditation under this Act;

(g) impose and collect penalties on violation, breach or non-compliance of the provisions of the rules, regulations, standing orders and instructions issued under this Act;

(h) advocate rights and responsibilities of recipients and providers of the healthcare services;

(i) hold seminars, conferences and meetings on developing awareness about provision of high quality healthcare services;

(j) enter into agreement or arrangement with the Federal Government or a Provincial Government, any authority, board, council or entity, non-governmental organization, domestic or international institution or agency for the purposes of this Act;

(k) coordinate, liaise and network with any person, agency or institution;

(l) take on lease land, buildings for the purpose of offices or premises of the Commission at such price and on such term as may be necessary;

(m) appoint, engage, authorize and terminate employees, consultants, advisors, attorneys, inspection teams, contractors, agents and experts on such terms and conditions as deemed fit and assign, delegate or entrust them with such functions and powers as are expedient for the performance of functions of the Commission;

(n) take measures for the welfare of the present and past employees of the Commission as well as its all registered members;

(o) issue regulations, guidelines, instructions and directives to persons involved in the provision of Healthcare services;

(p) grading of the healthcare establishments; and

(q) take necessary steps to ban quackery.

(3) The Commission may assign any of its functions to a person on such terms and conditions as may be agreed between the Commission and the person.

(4) In the performance of its functions, the Commission shall–

(a) take into consideration the policy advice of the Technical Advisory Committee; and

(b) co-ordinate with the Government.

(5) Subject to sub-section (6), the Commission shall conduct third party evaluation through independent performance audit of healthcare establishments in a phased manner.

(6) The Commission shall not conduct third party evaluation through independent performance audit of healthcare establishments in the private sector other than tertiary care hospitals.

(7) Notwithstanding anything contained in any other law, the Commission may–

(a) on a complaint by any aggrieved person; or

(b) on a complaint by any aggrieved healthcare service provider; and shall–

(c) on a reference by the Government or the Provincial Assembly of the Punjab; or

(d) on a motion of the Supreme Court of Pakistan or the Lahore High Court made during the course of any proceedings before it,

undertake investigation into allegations of maladministration, malpractice or failures on the part of a healthcare service provider, or any employee of the healthcare service provider.

(8) The Commission shall take cognizance of any case of harassment of a healthcare service provider or damage to a healthcare establishment and may refer such a case to the competent forum.

(9) The Commission shall take measures and devise a strategy to counter sale of drugs without prescription.

(10) The Commission may exercise the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (V of 1908), in respect of the following matters:-

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) compelling the production of documents;

(c) receiving evidence on affidavits; and

(d) issuing commission for the examination of witnesses.

(11) The Commission shall not investigate or inquire into any matter subjudice before a Court of competent jurisdiction on the date of the receipt of a complaint, reference or motion.

(12) The Commission may authorize members of the staff to administer oaths and to attest various affidavits, affirmations or declarations which shall be admitted in evidence in all proceedings under this Act without proof of the signature or seal or official character of such person.

(Underlining supplied for emphasis)

7. The petitioners were since proceeded on account of violation of the provisions of the **Act, 2010**, especially committing quackery at their premises so it would be apt to first have a glimpse of the definition of quack, provided under the **Act, 2010** through Clause (xxix) of Section 2, which reads as under:-

“quack” means a pretender providing health services without having registration of the Medical and Dental Council, Council for Tibb, Council for Homeopathy and Nursing Council;

Chapter V of the **Act, 2010** deals with inspection and enforcement. Section 28 of the **Act, 2010** bestows jurisdiction upon the Commission for adjudication of fine. Since the main stay of the learned counsel for the petitioners is upon the said provision with the contention that fine can only be imposed by the Commission so it would be advantageous to reproduce it below for the purpose of ease:-

28. Jurisdiction of Commission for adjudication of fine.— (1) Notwithstanding anything contained in any other law, the Commission may, for contravention of a provision of this Act, rules or regulations, impose fine which may extend to five hundred thousand rupees in accordance with the provisions of this Act, keeping in view the gravity of offence.

(2) The Commission shall afford adequate opportunity of hearing to a person before imposing fine on the person under this Act.

(3) If the complaint, submitted either by an aggrieved person or a healthcare service provider, is proved false, the Commission may impose fine which may extend to two hundred thousand rupees upon the complainant.

There is no cavil from the bare reading of the above referred provision that in terms thereof, it is the Commission, who on contravention of any provision of the **Act, 2010**, rules or regulations, impose fine which may extend to five hundred thousand rupees in accordance with the provisions of the **Act, 2010**, keeping in view the gravity of the offence.

8. Now advertent to the core question raised by learned counsel for the petitioners as to the competency of the Hearing Committee to impose fine in contravention of the provision of the **Act, 2010**, it would be beneficial to first have the background as to how the Hearing Committee was constituted. Section 40 of the **Act, 2010** empowers the Commission to make regulations for carrying out the purposes of the Act by notification in the official gazette. In furtherance of the powers, so vested, Punjab Healthcare Commission Regulations for Banning Quackery in all its

forms and manifestations and for dealing with Quacks, 2016 (hereinafter referred to as “**Regulations, 2016**”) were framed. Regulation 2 (c) defines the competent authority in the following manner:-

(c) "Competent Authority" means such Committee(s) comprising of one or more member(s), as nominated by the Commission from within its staff, not below the rank of Deputy Director, and authorized by the Commission, from time to time, to take necessary action under the provisions of the Act, any Regulations and in particular these Regulations, to tackle the menace of Quackery and also to pass such orders, including but not limited to interim orders, as deemed necessary, on complaints and / or Reports submitted before the Commission and exercise all or any such powers as provided for in the Act, including but not limited to sealing of such Healthcare Establishment(s) where quackery is being practiced in any form whatsoever, to ensure that quackery is stopped and eradicated in all its forms and manifestations;

(Underlining supplied for emphasis)

It is thus apparent from the above that any Committee nominated by the Commission is termed as ‘Competent Authority’ for the purposes mentioned therein which includes the exercise of all or any powers of the Commission as provided for in the **Act, 2010**. Regulation 7 of the **Regulations, 2016** deals with the powers to pass orders, which reads as under:-

7. (1) The Competent Authority, may pass such orders, including but not limited to the following orders, in view of the Report or allegations contained in the Report / Complaint, while recording the reasons thereof, in view of the facts and circumstances of the matter, in order to safeguard the public interest and for achieving the purposes of the Act: -

- a) issue orders of restraint;
- b) issue directions to the Provincial Government;
- c) issue directions to a Healthcare Establishment;
- d) pass any conditional orders relating to the manner in which healthcare services are being delivered or to improve the healthcare delivery system at any given Healthcare Establishment;
- e) issue any directions to any other authority within the scope of the Act;
- f) issue any such instructions, directions or orders as deemed necessary;

g) allow the provisions of healthcare services at the premises/ site or undo the same after hearing the Owner, Manager, In-charge of the Healthcare Establishment or the Proprietor, as the case may be, having satisfied itself about the genuineness of the Certificate of Registration(s) and that the requisite license;

h) Issue such directions as deemed necessary and appropriate to ensure that quackery is stopped and eventually eradicated, in all its forms and manifestations from the province;

i) liaison and communicate with the Pakistan Medical and Dental Council (PMDC), Council for Homeopathy, Council for Tib, Nursing Council or any other authority competent to handle the matter and to assist the Commission in deciding the matter, in the larger public interest.

Provided that the Competent Authority may also further direct that any of the Orders so passed by it may be for a particular period/duration of time or that the same be implemented within a particular time frame and that a compliance report be submitted before it.

9. To understand the proposition in more better terms, reference can be made to the case of Muhammad Ahmad versus District Judge Pakpattan, etc. (2025 LHC 3687) (LHC Website). Relevant portion from the judgment is reproduced below:-

8. Now I take-up gross misconception that only the Commission, and not the committee(s) constituted under the Regulations, 2016, is competent and empowered to impose fine. Is section 28 of the Act of 2010 confers exclusivity to the Commission with respect to imposition of fine? Apparently, the expression “fine” and “penalty” has been interchangeably used in the Act, 2010, hence, for the purposes of present judgment, there is no occasion to dilate upon them separately, to understand each’s specific connotation. There is no cavil that power to impose and collect penalty is conferred upon Commission in terms of Section 4(2)(g) of the Act – and those powers are exercised by the competent authority(ies) as mandated by the terms of the statute. And manifestation of such powers and functions by the Commission resulted into an establishment of AntiQuackery cell – regulated under the Resolutions 2016. Regulations, 2016 defines an expression „competent authority” in terms of regulation 2(c) and in terms thereof, the Commission is empowered to form committees for hearing of those matters reported to it, regarding acts and incidences of quackery – this manifests an intent to take steps to ban quackery in exercise of function assigned under section 4(2)(q) of the Act, 2010. Commission is a corporate body – juridical person – which operates and functions through assigns / delegatee(s) or bodies / committees, being qualified as an alter-ego of the Commission. Board constituted under section 5 of the Act, 2010 is not a Commission, nor the Chairperson could claim to be a Commission. Committee(s),

instrumentalities of the Commission, in terms of Regulations, 2016, are empowered to examine the reports submitted by Enforcement Managers, scrutinize the reports, afford hearings to identified delinquents and make recommendations / orders, including imposition of fines, as the case may be –imposition of fines are regulated under regulation 7(4) of the Regulations, 2016. Powers exercised by the Committee, be it the hearing committee, which is a competent authority, are manifestation of the powers and functions of the Commission. Exercise of powers, vested in the Commission, by the committee(s) constituted by the Commission, would not constitute a breach of section 28 of the Act, 2010, in the context of imposition of fines. Even otherwise this discussion has an academic significance only when the findings recorded in the case of Muhammad Tariq Javaid (supra) - confining the exercise of power of imposing fine exclusively by the Commission - were set aside by the Supreme Court of Pakistan in a case of „Punjab Healthcare Commission through its Chief Executive Officer, Office No.185 Ahmad Block, New Garden Town, Lahore and another v. Muhammad Tariq Javaid and others” in Civil Petition No.5355 of 2024. Hence, imposition of fine by the hearing Committee is an exercise of the powers extended to the Commission and such act / decision falls within the scope of section 28 of the Act, 2010 - Commission is a juridical person and same operates through Committee(s) or assigns/delegatees, provided authority is extended by the Commission to exercise powers and discharge the functions of the Commission. This case is no exception.

After having an overview of the above noted principles, there remains no hint of doubt that the Hearing Committee was competent to impose fine.

10. The next question as to whether, the petitioners were indulged in quackery or otherwise, is purely an intricate question of fact, qua which a detailed report was prepared by the Authorized Officer, who placed the same before the Commission and after due notice, the proceedings were conducted under the **Act, 2010** read with **Regulations, 2016**, which ultimately ended in the shape of imposition of fine upon the petitioners, which was later on reduced by the learned District Judge, Attock, while exercising powers in appeal through the impugned judgment.

11. The petitioners have badly failed to point out any breach or contravention of any of the provision of the **Act**,

2010 or **Regulations, 2016**. This petition is thus bereft of any merits, resultantly, the same is **dismissed in limine**.

(MIRZA VIQAS RAUF)
JUDGE

Approved for reporting

JUDGE

Sajjad